

24STCV26635 24STCV26635

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-08-14

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C414%2C08%2F14%2F2026

Source SHA-256: cc17d08f4fb1d72399b0f5ed41dda6cf4d2a794f5cb5e268d15f3c73c62873f9

Case Number: 24STCV26635 Hearing Date: August 14, 2026 Dept: 414

24STCV26635 Kenneth Tompson v. Cabinets to
Go, LLC, et al.

Friday, August 14, 2026

[TENTATIVE] ORDER DENYING

PLAINTIFF'S NOTICE OF DEFAULT AND MOTION FOR ORDER ENTRING JUDGEMENT BY COURT
AS TO DEFENDANTS ROBERT L. WOOTEN and ONE STOP

CONSTRUCTION &
RESTORATION

The

complaint alleges Plaintiff contracted with Defendants to complete construction work for a kitchen remodel. Plaintiff alleges Defendants failed to complete the installation, requiring Plaintiff to employ third party contractors to finish the work. Plaintiff alleges 12 causes of action for breach of contract and contract related claims, intentional infliction of emotional distress, negligent infliction of emotional distress, fraud and negligence.

Defaulting

defendant Wooten allegedly owns Defendant One Stop Construction & Restoration, LLC (collectively "One Stop") who was hired to provide installation work for the kitchen remodel. Plaintiff alleges a claim for negligence for failing to properly install cabinets, breach of contract, emotional distress, and for fraud.

The Defendants are:

SFV-LLGC, LLC Answered on February 28, 2025 Settled 5/6/26

Cabinets to Go Answered on November 21, 2024 Settled 5/6/26

Robert L. Wooten Default
entered 3/12/2025

One Stop Construction Default
entered 3/12/2025

By

this motion, Plaintiff seeks judgment against the One Stop for \$42,663.05, including fees pursuant to a later motion, and costs. The Request for Court Judgment is defective for the following reasons.

1. Failure

to use Judicial Council Form.

A party

requesting default judgment must use mandatory Request for Entry of Default (Application to Enter Default, form CIV-100; Cal Rules of Court 3.1800.)

Plaintiff used the form to request entry of default. Plaintiff must use the same form but mark "Request for Court Judgment."

2. The

complaint does not allege a certain amount of damage against defaulting Defendants.

If

the recovery of money or damages is demanded, the amount demanded shall be stated unless the action is one for personal injury or wrongful death. (Code Civ. Proc., § 425.10.) In cases that are not personal injury or wrongful death cases, courts must look to the prayer of the complaint or to "allegations in the body of the complaint of the damages sought" to determine whether a defendant has been informed of the "maximum liability" he or she will face for choosing to default. (People ex rel. Lockyer v. Brar (2005) 134 Cal.App.4th 659, 667; Parish v. Peters (1991) 1 Cal.App.4th 202, 216
["To pass constitutional muster, the complaint must either allege a

specific dollar amount of damages in the body or prayer or at the very least allege the boilerplate damages are in an amount that exceeds the jurisdictional requirements of the court"].)

Plaintiff

alleges a claim for breach of contract for Defendants' failure to complete the installation work, requiring Plaintiff to hire third-party contractors to complete the work. (Complaint, ¶ 19.) Plaintiff does not allege a certain amount of damage. (Complaint, ¶ 46.) The complaint alleges that Plaintiff contracted with One Stop "for all related work that fell outside of the scope of his agreement with CTG ("Independent Work"). The Independent Work was estimated to cost over \$30,000.00." (Complaint, ¶ 12.) Plaintiff alleges damage for having to hire another contractor to finish the job. Therefore, the complaint is defective for failure to allege damage in a sum certain.

3. None

of the records are authenticated.

Plaintiff

submits evidence showing damage by declaration of Plaintiff's counsel who lacks foundation for any of the invoices submitted to the Court. Code of Civil Procedure section 585 "specifically requires that the facts stated in the affidavit or affidavits shall be within the personal knowledge of the affiant and shall be set forth with particularity, and each affidavit shall show affirmatively that the affiant, if sworn as a witness, can testify competently thereto." (Kim v. Westmoore Partners, Inc. (2011) 201 Cal.App.4th 267, 287; Evid. Code, § 1400. ["Authentication of a writing means (a) the introduction of evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is or (b) the establishment of such facts by any other means provided by law."].)

4.

Attorney's fees

are awarded pursuant to local rule, not by motion.

When a promissory note, contract, or statute provides for the recovery of reasonable attorneys' fees, the court applies a scheduled fee that is based on the principal damage suffered (Los Angeles Superior Court Rules, Rule 3.214.)

Based on the foregoing, the motion is

DENIED.